

Amended and Restated Constitution

Acme AI Limited

Background

(A) Acme AI Limited is a private company limited by shares incorporated in Ireland (Company Registration No. 678901) whose registered office is at 3rd Floor, The Merchants Building, Sir John Rogerson's Quay, Dublin 2, D02 X576, Ireland.

(B) The Company carries on the business of developing and licensing artificial intelligence software-as-a-service solutions for enterprise customers in the European Union, United Kingdom and North America.

(C) The Company adopted this Constitution following the Series B funding round.

(D) The parties have agreed to enter into this Agreement on the terms set out below.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration (the receipt and sufficiency of which are hereby acknowledged), the parties agree as follows:

1. Definitions and Interpretation

1.1 "Company" means Acme AI Limited. References to "Company" include, where the context permits, any successor or assignee thereof.

2.1 "Directors" means the directors of the Company from time to time. References to "Directors" include, where the context permits, any successor or assignee thereof.

3.1 "Share" means a share in the capital of the Company. References to "Share" include, where the context permits, any successor or assignee thereof.

2. Interpretation

In this Agreement, unless the context otherwise requires: (1) headings are for convenience only and do not affect interpretation; (2) words importing the singular include the plural and vice versa; (3) references to a person include bodies corporate, unincorporated associations and partnerships; (4) "Company" means Acme AI Limited (Company Registration No. 678901); (5) references to statutes or statutory provisions include any subordinate legislation and any modification, consolidation or re-enactment thereof; (6) references to writing include email where acknowledged by the recipient; (7) references to days are to calendar days unless stated as Business Days; (8) Business Day means a day on which banks are open for business in Dublin, Ireland and London, England; (9) any obligation on a party not to do something includes an obligation not to allow it to be done; (10) the words include and including are without limitation.

The Schedules form part of this Agreement and shall have the same force and effect as if set out in the body of this Agreement. In the event of conflict between the body and a Schedule, the body shall prevail unless the Schedule expressly states otherwise.

This Agreement has been negotiated at arm's length. Each party acknowledges that it has had the opportunity to obtain independent legal advice and that the doctrine of contra proferentem shall not apply in the construction or interpretation of this Agreement.

3. Share Capital

The share capital is divided into Ordinary Shares and Preferred Shares with rights as set out in this Constitution.

Preferred Shares carry liquidation preference, anti-dilution, and conversion rights as approved by special resolution on 15 September 2024.

4. Directors

Minimum two, maximum nine directors. Directors may be removed by ordinary resolution.

The Board may delegate day-to-day management to the CEO and executive team.